

lowed in the Queen's Bench. The witness having been sworn by the Registrar, one of the Judges takes down his evidence (the full Court being sitting), and at the conclusion of the examination in chief, cross-examination, and re-examination respectively, the evidence is read over to the witness and signed by him. After publication has passed, the Registrar furnishes to the Solicitors, who request them, copies of the depositions, and they are read at the hearing in the same manner as formerly.

A large portion of the evidence is often documentary, and may be put in on affidavit under the following Order :

That in cases in which any exhibit may by the present practice of the Court be proved *vivâ voce* at the hearing of a cause, the same may be proved by the affidavit of the witness who would be competent to prove the same *vivâ voce* at the hearing.

Jan. 1842.
120.
Exhibits may
be proved by
affidavit.

For what exhibits may be so proved, see *Daniel's Chancery Practice*, vol. 2, p. 1025 and following pages, Perkins' Edition, 1846.

Another mode of putting documents in evidence is under the following Orders, which establish a practice similar to that which has been found highly useful in the Common Law Courts.

Any person after replication filed may give notice to the other in the form set forth in schedule F. to these orders appended, or to the like effect, of his intention to adduce in evidence certain documents ; and, unless the adverse party shall consent by indorsement on such notice within forty-eight hours, to make the admission specified, the party requiring such admission may call on the party required to show cause why he should not consent to such admission, or in case of refusal be subject to pay the costs of proof ; and, unless the party required shall expressly consent to make such admission, the Court shall, if the application seem reasonable, make an order, that the costs of producing any document specified in the notice, which shall be proved at the hearing to the satisfaction of the Court, shall be paid by the party so required, whatever may be the result of the cause : Provided, that, if the Court shall think the application unreasonable, the motion shall be endorsed accordingly : Provided also, that the Court may give such time for enquiry, or examination of

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Admission of
documents may
be demanded.